

**UNITED STATES COURT OF APPEALS  
FOR THE ELEVENTH CIRCUIT**

ELBERT PARR TUTTLE COURT OF APPEALS BUILDING  
56 Forsyth Street, N.W.  
Atlanta, Georgia 30303

David J. Smith  
Clerk of Court

For rules and forms visit  
[www.ca11.uscourts.gov](http://www.ca11.uscourts.gov)

April 21, 2021

Clerk - Northern District of Florida  
U.S. District Court  
100 N PALAFOX ST  
PENSACOLA, FL 32502

Appeal Number: 20-12897-GG  
Case Style: Deepgulf, Inc., et al v. Marc Moszkowski  
District Court Docket No: 3:18-cv-01466-TKW-MJF

The enclosed copy of this Court's order of remand is issued as the mandate of this Court. Counsel and parties are advised that with this order of remand this appeal is concluded. If further review is to be sought in the future a timely new notice of appeal must be filed.

Sincerely,

DAVID J. SMITH, Clerk of Court

Reply to: Joseph Caruso, GG  
Phone #: (404) 335-6177

Enclosure(s)

DIS-4 Multi-purpose dismissal letter

IN THE UNITED STATES COURT OF APPEALS  
FOR THE ELEVENTH CIRCUIT

---

No. 20-12897-GG

---

DEEPGULF, INC.,  
TOKE OIL AND GAS SA,

Plaintiffs-Counter Defendants-Appellants,

versus

MARC M. MOSZKOWSKI,

Defendant-Counter Claimant-Appellee.

---

Appeal from the United States District Court  
for the Northern District of Florida

---

Before: WILSON, JORDAN and ROSENBAUM, Circuit Judges.

BY THE COURT:

We hereby VACATE the judgment in this case and REMAND with instructions for the district court to remand the case to state court because, as the district court determined, it lacked alienage jurisdiction over the case. *See* 28 U.S.C. § 1332(a)(2); *Lincoln Prop. Co. v. Roche*, 546 U.S. 81, 89 (2005); *Iraola & Cia, S.A. v. Kimberly-Clark Corp.*, 232 F.3d 854, 860 (11th Cir. 2000); *Caron v. NCL (Bah.), Ltd.*, 910 F.3d 1359, 1364–65 (11th Cir. 2018).